

Agriculture and Fisheries by means of a mechanically operated instrument in proper repair and of a type approved by the Minister, and section four of this Act shall not apply in respect of any slaughter-house or knacker's yard which for the time being is or is in an infected place within the meaning of the said Acts.

Short title
and com-
mencement.

11.—(1) This Act shall apply to Scotland, and may be cited as the Slaughter of Animals (Scotland) Act, 1928.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-nine: Provided that section one, in so far as it relates to the slaughter of any sheep, ewe, wether, ram or lamb, shall not come into operation until the first day of October, nineteen hundred and twenty-nine.

CHAPTER 30.

An Act to make further provision for the re-organisation of educational and other endowments in Scotland. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Appoint-
ment of
Commis-
sioners.

1.—(1) For the purposes of this Act it shall be lawful for His Majesty to appoint nine Commissioners, and to appoint a secretary to the Commissioners, and as vacancies occur to supply such vacancies. The Commissioners and the secretary shall hold office during His Majesty's pleasure. His Majesty may from time to time appoint one of the Commissioners to be chairman.

(2) The secretary and such assistant commissioners and other officers, as the Commissioners may with the consent of the Treasury as to number appoint, shall be paid such remuneration as the Treasury may determine, and such remuneration, together with all expenses incurred by the Commissioners in the execution of this Act with the approval of the Treasury, shall be paid out of moneys provided by Parliament.

2. Subject to the provisions hereinafter contained, the Commissioners shall have power to prepare draft schemes for the future government and management of educational endowments, which schemes may provide—

Powers of
Commis-
sioners.

- (a) for altering the purposes to which such endowments are applied or applicable and the conditions and provisions regarding such application;
- (b) for the application of the capital or income of such endowments to such educational purposes, mental or physical, moral or social, as the Commissioners think fit having regard to the public interest and to existing conditions, social and educational: Provided always that the capital of any such endowment shall not be expended except on a purpose to which capital may properly be devoted;
- (c) for grouping, amalgamating, combining, or dividing any such endowments;
- (d) for altering the constitution of the governing body of any such endowment, or uniting two or more existing governing bodies or establishing new governing bodies with such powers as shall seem necessary, and for incorporating any governing body, whether old or new;
- (e) for altering the powers as to the investment of the funds of any such endowment.

3.—(1) Subject to the provisions of this Act, it shall be the duty of the Commissioners in re-organising any endowment in pursuance of the powers conferred by this Act to have special regard—

Directions
as to
schemes for
re-organisa-
tion.

- (a) to the spirit of the intention of the founders as embodied either (i) in the original deed constituting the endowment where it is still the governing instrument, or (ii) in the scheme approved under the Act of 1882, or under any other Act, or in any Provisional Order affecting the endowment;
- (b) to the interest of the locality to which the endowment belongs;
- (c) to the possibility of effecting economy in administration by the grouping, amalgamation, or combination of any two or more endowments.

(2) In every scheme which abolishes or modifies any privileges or educational advantages to which a particular class of persons is entitled, whether as inhabitants of a particular area or as belonging to a particular class in life or otherwise, the Commissioners shall have regard to the educational interests of such class of persons : Provided always that, where the governing instrument of any educational endowment has expressly provided for the education of children belonging to the poorer classes, either generally or within a particular area, or otherwise for their benefit, such endowment for such education or otherwise for their benefit shall continue, so far as requisite, to be applied for the benefit of such children.

Act not to
apply to
certain en-
dowments.

4.—(1) The powers of the Commissioners under this Act shall not extend—

- (a) to any educational endowment given either by present gift made subsequently to the thirty-first day of December, nineteen hundred and twenty, or by the will of a testator who died after the said day ;
- (b) to any endowment vested in, or administered by, or in the gift of any of the universities of Scotland, or any of the colleges of such universities (hereinafter in this Act referred to as a university endowment); or
- (c) to any endowment solely or mainly applicable or applied for the purposes of theological instruction or belonging to any theological institution (hereinafter in this Act referred to as a theological endowment); or
- (d) to the property vested in the Carnegie Trustees for the Universities of Scotland (hereinafter in this Act referred to as the Carnegie Trust),

unless the founder or the governing body of such endowment, or the University Court of such university or the said Carnegie Trustees respectively, shall intimate in writing to the Commissioners their consent to such endowment or Trust being dealt with under this Act.

(2) Where the University Court of any university or the Carnegie Trustees intimate in writing to the

Commissioners their consent that a university endowment or the Carnegie Trust respectively shall be dealt with under this Act, the provisions of this Act shall apply to such endowment or Trust with the substitution for the Department of the Scottish Universities Committee of the Privy Council.

5. Where part of an endowment has been given on or before the thirty-first day of December, nineteen hundred and twenty, and another part has been given after the said day, and the two portions cannot in the opinion of the Commissioners be conveniently separated from each other, the date of the older part of the endowment shall be held to be the date of the endowment.

Date of endowments.

6. Where any part of an endowment is an educational endowment within the meaning of this Act, and part of it is applicable or applied to other charitable purposes, the scheme shall be in conformity with the following provisions (except so far as the governing body of such endowment assent to the scheme departing therefrom), that is to say :—

Mixed endowments.

- (1) The proportion of the endowment or annual income for the time being derived therefrom which is applicable to such other charitable uses shall not be diverted by the scheme from such uses unless in the opinion of the Commissioners—

(a) there are no persons who are entitled to benefit out of such part of the endowment; or

(b) the purposes of such part of the endowment have failed altogether or have become obsolete or useless or are otherwise sufficiently provided for; or

(c) such purposes have become insignificant in comparison with the magnitude of such part of the endowment; or

(d) such purposes have become prejudicial to the public welfare.

- (2) The proportion of the endowment or annual income for the time being so applicable to such

other charitable uses shall be deemed to be the proportion which, in the opinion of the Commissioners, is the proportion which has according to the average of such number of years as the Commissioners shall determine been appropriated as regards capital or applied as regards income to such uses, or if that proportion differs from the proportion which ought to have been so appropriated or applied according to the express directions of the instrument of foundation or the decree of any competent court or the statutes or regulations governing such endowment, the proportion applicable to such other charitable uses shall be the proportion which ought, according to the express directions of such instrument, or such decree or such statutes or regulations, to have been appropriated or applied to such other charitable uses :

- (3) If the proportion applicable to other charitable uses amounts to or exceeds one half of the whole of the endowment, the governing body of such endowment existing at the date of the scheme shall, so far as regards its non-educational purposes, remain unaltered by the scheme :
- (4) Where the governing body remains so unaltered, that body shall pay or apply for educational purposes such proportion as under the former provisions of this section is applicable to those purposes, or such less sum as may be fixed by the Commissioners :
- (5) When any portion of the endowment or the annual income of such portion has been accumulated and not applied to any purpose, the Commissioners shall determine whether, and in what proportion, such portion or income is to be considered for the purposes of this section as having been appropriated or applied for educational purposes or for other charitable uses.

Subject to the foregoing provisions of this section, the Commissioners shall have power by any scheme to deal with such endowments, and with the governing

body thereof, in the same manner in all respects as if the whole of it were an educational endowment.

7. Where the governing body of any endowment (not being an educational endowment) are of opinion that it is expedient that the endowment should be dealt with by the Commissioners on any of the following grounds, viz. :—

Non-educational endowments.

- (a) That there are no persons entitled to benefit out of the endowment; or
- (b) That the purposes of the endowment have failed altogether or have become obsolete or useless or prejudicial to the public welfare, or are otherwise sufficiently provided for, or are insignificant in comparison with the magnitude of the endowment, or are not substantially beneficial to the class of persons for whom the endowment was originally intended; or
- (c) That it is impossible, owing to the inadequacy of the endowment or to the impracticable character of the founder's intentions, to carry these intentions into effect,

the governing body may intimate in writing to the Commissioners their consent to the endowment being dealt with under this Act and thereafter such endowment may be dealt with in all respects as if it were an educational endowment.

8.—(1) Where the Lord Advocate is of opinion on any such ground as is specified in the immediately preceding section of this Act that a scheme for the future administration of any endowment to which this section applies should be framed, he may present a petition to the Court of Session for such a scheme and on any such petition the Court shall have power to frame a scheme for the future administration of the endowment and for the application of the capital or income of the endowment to any purposes, as nearly as may be analogous to those contained in the governing instrument, as the Court shall think fit.

Schemes by Court of Session.

(2) This section shall apply to any such endowment as is mentioned in the immediately preceding section

or in paragraph (a) of subsection (1) of section four of this Act where the governing-body of such endowment have not intimated their consent to its being dealt with under this Act.

Endow-
ments for
apprentice-
ship fees.

9. For the purposes and subject to the provisions of this Act, endowments for the payment of apprenticeship fees, or for the advancement in life, or for the maintenance or clothing, or otherwise for the benefit of poor children shall be deemed to be and may be dealt with as educational endowments.

Vested
interests.

10. In framing a scheme for any endowment, the Commissioners shall save or shall make due compensation for the vested interests of individuals holding any office, place, employment, pension, compensation allowance, bursary, or emolument under or arising out of the endowment at the date of the passing of this Act.

Interests
acquired
after
passing of
Act.

11. Every interest, right, privilege, or preference which any person may acquire after the passing of this Act, in or relative to any endowment, or in the governing body thereof, or as member of any such governing body, or in or relative to any office, place, employment, pension, compensation allowance, bursary, or emolument in the gift of any such governing body, shall be subject to the provisions of any scheme made under this Act; and the governing body of an educational endowment shall not, during the continuance of the powers of the Commissioners under this Act, begin to build, rebuild, or enlarge any school buildings, or teachers' residences, or buildings connected therewith, except with the written consent of the Commissioners, or under the directions or powers of such a scheme, but this provision shall not prevent them from continuing any works begun before the commencement of this Act, or from doing anything necessary for the repair or maintenance of buildings or residences existing at the commencement of this Act.

Selection
of benefi-
ciaries.

12. In framing a scheme for any endowment, the Commissioners shall provide that in making a selection from amongst those eligible for the benefits of the endowment, due regard shall be paid to diligence, attainment and promise as ascertained in such manner as the Commissioners shall determine.

13. In framing schemes the Commissioners shall, so far as can be equitably arranged and as the circumstances of each particular locality require, provide for extending to both sexes the benefit of endowments.

Benefits to be
extended to
both sexes.

14.—(1) In every scheme the Commissioners shall provide for the dismissal at pleasure of every officer in the employment of the governing body and of every teacher and officer in any endowed school to which the scheme relates, provided that (i) the scheme shall make provision for the application in the case of the dismissal of a certificated teacher of the provisions of section twenty-one of the Education (Scotland) Act, 1908, and of section twenty-four of the Education (Scotland) Act, 1918, with the substitution of the governing body for the education authority, and with any other necessary modifications, and (ii) the scheme may confer on any such officer or teacher (other than a certificated teacher) as aforesaid a right of appeal to such authority and on such conditions as to the Commissioners may seem fit.

Tenure of
office of
teachers,
&c.

8 Edw. 7.
c. 63.
8 & 9 Geo. 5.
c. 48.

(2) Any such scheme may contain provision for the removal of any religious test or qualification applicable to teachers.

15.—(1) Every scheme shall provide for the periodical inspection of any school sharing in any endowment dealt with by the scheme in such manner as the Department may from time to time prescribe, and, except in the case of a public or a grant-aided school, the cost of such inspection shall be paid out of the funds of the endowment to which the scheme relates.

Inspection
and audit.

(2) Every scheme shall provide for the periodical audit of the accounts of any endowment dealt with by the scheme in such manner and by such person as the Department may from time to time prescribe, and, except in the case of a university or theological endowment or of the Carnegie Trust, the person to be so prescribed may be the accountant of the Department.

(3) The cost of any audit in pursuance of the foregoing subsection shall be paid out of the funds of the endowment, and, where the audit is made by the accountant of the Department, there shall be chargeable and included in the cost thereof such fees as the Department with the consent of the Treasury may fix.

Preliminary
inquiry.

16. Before preparing the draft of a scheme for any endowment, the Commissioners may by themselves or by any assistant commissioner hold such public inquiry as they think proper, and shall give the governing body or governing bodies an opportunity of being heard.

Governing
body may
lodge draft
scheme.

17. Any governing body or any governing bodies jointly may within two months after the commencement of this Act give notice in writing of their intention to submit a draft scheme for the consideration of the Commissioners, and if after such notice they submit such a scheme within four months after the commencement of this Act the Commissioners shall take it into consideration before preparing their scheme.

Printing
and publica-
tion of
draft
schemes.

18. When the Commissioners have prepared the draft of a scheme, they shall cause it to be printed, and printed copies of it to be sent to the governing body of the endowment to which it relates, and shall also cause the draft, or a proper abstract thereof, to be published in such manner as they think sufficient for giving information to all persons interested.

Objections
to draft
schemes.

19. During two months after the first publication of the draft of a scheme, the Commissioners shall receive any objections made to them in writing by any public body or persons interested respecting such scheme, and any amendments proposed thereon, and at any time after the expiration of such two months the Commissioners, if they think fit, may hold an inquiry, or they may refer the draft of the scheme, and the amendments proposed thereon, to an assistant commissioner, and direct him to hold a local public inquiry concerning the subject-matter of such scheme.

Framing of
schemes.

20. As soon as may be after the expiration of the said two months, or the holding of such inquiry by the Commissioners, or the receipt by the Commissioners of the report of the assistant commissioner on the local inquiry held by him (as the case may be), the Commissioners shall proceed to consider any objections made to them in writing respecting the draft scheme, and any amendments proposed thereon, and the report (if any), and thereupon they shall, if they think fit, frame a scheme in such form as they think expedient, and submit it for

the approval of the Department, provided that, where a scheme has been prepared and submitted in pursuance of this Act to the Commissioners, before the Commissioners have prepared the draft of a scheme, the Commissioners shall, if requested by the governing body who submitted it, submit such scheme with their own to the Department.

21. The Department, as soon as a scheme is submitted to them, shall, before approving it, cause it, or a proper abstract of it, to be published in such manner as they think sufficient for giving information to all persons interested, together with a notice stating that during two months after the first publication of such notice the Department will receive any objections made to them in writing by any public body or persons interested respecting such scheme. After the expiration of the said two months, unless a case has been submitted to the Court of Session within the time and in the manner hereinafter provided, the Department may, if they think fit, approve the scheme or may remit the scheme to the Commissioners, with such declaration as the nature of the case seems to them to require, and if they remit the scheme with a declaration the provisions contained in the immediately succeeding section shall apply.

Consideration of schemes by Department.

The Department as soon as they approve a scheme shall forthwith, in such manner as they think sufficient for giving information to all persons interested, publish a notice that the scheme has been approved by them, and that unless within two months after the first publication of such notice a petition is presented to the Department as in this section mentioned, the scheme may be approved by His Majesty by an Order in Council without being laid before Parliament.

During the said two months a petition praying that the scheme may be laid before Parliament may be presented to the Department by the governing body of the endowment to which the scheme relates, or by the town council of any burgh directly affected by the scheme, or by any education authority so affected, or by any ratepayers (not less than twenty) of any burgh or parish or place directly affected by the scheme, or by any person or persons having a vested interest in the endowment or any part of it.

Amended
schemes.

22. Where a scheme is remitted with a declaration the Department shall transmit to the Commissioners any objections made to them in writing respecting such scheme, and the Commissioners may thereupon proceed to prepare an amended scheme and may submit the same for the approval of the Department in the same manner and subject to the same provisions as are in this Act provided in the case of the approval of a scheme, and so on from time to time as often as occasion may require.

Quorum of
Commis-
sioners.

23. A scheme of the Commissioners shall not be submitted to the Department unless a majority of the Commissioners for the time being have signified in writing their approval of such scheme, but in all other respects three Commissioners may act under this Act.

Quorum of
governing
body.

24. The majority of members of a governing body who are present at a meeting of their body duly constituted shall have power to do anything that may be required to be done by a governing body for the purposes of this Act: Provided that this power shall be in addition to and not in restraint of any power which any meeting of such governing body may have independently of this Act.

Special case
to Court of
Session on
questions of
law.

25. If—

- (1) the governing body of any endowment to which a scheme relates, or any person or body corporate directly affected by such scheme, feel aggrieved by the scheme on the ground that it is not within the scope of, or is not made in conformity with this Act, or
- (2) any person, holding any office, place, employment, pension, compensation allowance, bursary, or emolument under or arising out of an endowment dealt with by the scheme, feels aggrieved by the scheme on the ground that it does not comply with the provisions of this Act as to saving or making due compensation for his vested interests,

such governing body, person, or body corporate may, within one month after the first publication of the scheme, submit a case to the Court of Session, to which

the Commissioners shall and any others directly interested may be parties, for the opinion of the said Court on the question or questions therein stated, and if the Court is of opinion that the scheme is contrary to law on any of the grounds in this section mentioned, the Department shall not approve thereof, but they may, if they think fit, remit the same to the Commissioners with a declaration as hereinbefore provided.

Subject to the provisions of the immediately succeeding section, a case submitted under this section shall be framed, lodged, amended, heard, and otherwise dealt with in the same manner, as nearly as may be, as a special case presented in terms of the sixty-third section of the Court of Session Act, 1868.

31 & 32 Vict.
c. 100.

26. In any proceeding before the Court of Session authorised by this Act, the judgment or deliverance of the Court shall be final and not subject to review; and the Court shall dispose of all questions of expenses, and may, if they think fit, direct the expenses or any part thereof (including the expenses of the Commissioners) to be paid out of the funds of the educational endowment to which the proceeding relates: Provided always that it shall not be lawful for the Court to find the Commissioners liable in expenses.

Deliverance
of Court of
Session
final.
Disposal of
questions of
expenses.

27. If at the expiration of the time for a petition to the Department praying that a scheme be laid before Parliament no such petition has been presented, it shall be lawful for His Majesty, by Order in Council, to approve such scheme without the same being laid before Parliament. If any such petition has been presented, the Department shall, as soon as may be, cause the scheme to be laid before both Houses of Parliament; and after it has lain two months before Parliament, then it shall be lawful for His Majesty by Order in Council to approve such scheme if no address has been presented within such two months by either of the said Houses praying His Majesty to withhold his approval or to approve any part of the scheme to which any address so presented does not relate.

Approval of
schemes.

A scheme when approved by His Majesty in Council shall have full operation and effect from the date of

such Order in Council, in the same manner as if it had been enacted in this Act; and thereupon every Act of Parliament, letters patent, statute, deed, instrument, trust, or direction relating to the subject-matter of the scheme, so far as inconsistent with the provisions thereof, shall be repealed and abrogated.

Schemes
for small
endow-
ments.

28. In the case of endowments belonging to any grant-aided school or to any public school under the Education (Scotland) Acts, 1872 to 1925, of less annual value than fifty pounds, the procedure hereinbefore prescribed shall not apply, if the governing body of such endowment or the education authority within whose area the school is situated, as the case may be, frame and submit to the Department a scheme respecting such endowment. The Department may approve such scheme with or without any modifications as they think fit. In framing and approving such scheme the same powers may be exercised, and subject to the same conditions, as nearly as may be, as in the case of any scheme under this Act; and such scheme, when approved by the Department, shall have effect as if it were a scheme approved by Order in Council under this Act.

Amendment
of schemes.

29. Schemes may be from time to time framed and approved for amending any scheme approved under this Act, and all the provisions of this Act relative to an original scheme shall, with any necessary modifications, apply also to an amending scheme.

Evidence of
scheme.

30. The Order in Council approving a scheme shall be conclusive evidence that such scheme was within the scope of and made in conformity with this Act, and the validity of such scheme and order shall not be questioned in any legal proceedings whatever. ..

Inquiry by
assistant
commis-
sioner.

31. Where any assistant commissioner holds a local public inquiry under this Act, he shall for that purpose hold a sitting or sittings in some convenient place in the neighbourhood of the place where the endowment or endowments to which the scheme relates is situate or administered, and shall thereat take and receive any evidence, oral or documentary, offered, or which may have been called for or produced under the powers contained

in the immediately succeeding section, and shall hear and inquire into any objections respecting the scheme or the endowment or endowments, with power from time to time to adjourn any sitting.

Notice shall be published in such manner as the Commissioners direct of every such sitting (except an adjourned sitting) fourteen days at least before the holding thereof.

32. In the execution of this Act the Commissioners shall have the same powers as a judge of the Court of Session with regard to the citation and examination of witnesses and the recovery and inspection of documents, and it shall not be necessary that any warrant or citation or order shall be signed by more than one Commissioner, and if any warrant or order of the Commissioners in exercise of the said powers is not obeyed, a judge of the Court of Session may on summary application by the Commissioners grant a second warrant of citation and diligence in ordinary form, or make such other order as may be necessary. Power to cite witnesses, &c.

This section shall authorise the citation and examination of witnesses and the recovery and inspection of documents before an assistant commissioner; and any assistant commissioner may administer an oath or affirmation, as the case may be, to any witness or haver.

33. The assistant commissioner who holds an inquiry shall make a report in writing to the Commissioners, setting forth the result of the inquiry, and, when the inquiry relates to a draft scheme, stating whether in his opinion the draft scheme referred to him should be approved with or without alteration, and if with any, then with what alteration, and his reasons for the same, and the objections, if any, made on the inquiry and his opinion thereon. Report of assistant commissioner.

34. The cost of publishing and circulating any draft scheme, or scheme or any abstract thereof, under this Act, shall be paid out of the funds of the endowment or endowments to which the same relates: Provided that, if the Department or the Commissioners cause any draft scheme or scheme or abstract thereof to be published Cost of publishing scheme, &c.

in the Edinburgh Gazette, no fees shall be exigible in respect of such publication.

Service of
notices.

35.—(1) Notices and documents required to be served or sent for the purposes of this Act may be served or sent by post, and shall be deemed to have been served and received at the time when the letter containing the same would be delivered in the ordinary course of the post; and in proving such service or sending it shall be sufficient to prove that the letter containing the notices or documents was properly addressed and put into the post office.

(2) Notices and documents required to be served on or sent to a governing body for the purposes of this Act may be served or sent by being left at the office, if any, of such governing body, or by being served on or sent to the chairman, secretary, clerk, or other officer of such body, or if there is no office, chairman, secretary, clerk, or officer, or none known to the Commissioners after reasonable inquiry, by being served on or sent to the principal teacher of the endowed school, if any, under such governing body.

Signature
and evi-
dence of
documents
of the
Depart-
ment.

36. Any scheme, declaration, minute, notice, or other document for the purposes of this Act, if purporting to be signed by a secretary, or assistant secretary of the Department, shall, unless the contrary is proved, be deemed to have been so signed and to have been approved or made, as the case may be, by the Department.

Annual
reports.

37. The Commissioners shall in every year make to the Department a report of their proceedings under this Act during the preceding year, and the Department shall cause such report to be laid with all convenient speed before both Houses of Parliament.

Returns,
&c., by
governing
body.

38. Every governing body shall make such reports and returns and give to the Commissioners such information as to the funds, estates, property, and income under the control of the governing body as the Commissioners may from time to time require.

Every governing body shall make such reports and returns and give such information to the Department as the Department may from time to time require.

39. If the governing body of any educational endowment fail to give effect to the provisions of any scheme approved under this Act, it shall be lawful for the Department, after such inquiry as they shall think proper, to send a requisition to such governing body, requiring them to give effect to the provisions of the scheme, and the governing body shall comply with the said requisition without undue delay, and, if they fail, may be summarily compelled to do so by the Court of Session, on a petition and complaint at the instance of the Lord Advocate.

Provision
for default
of governing
body.

40. The powers of the Commissioners under this Act shall not, unless continued by Parliament, be exercised by them after the thirty-first day of December, nineteen hundred and thirty-one.

Duration of
powers of
Commis-
sioners.

41.—(1) After the expiry of the powers of the Commissioners the Department shall have, except in the case of a university endowment or of the Carnegie Trust, the like powers regarding schemes for the future government and management of endowments as are conferred by this Act on the Commissioners, and for the purpose of the exercise by the Department of the said powers the provisions of this Act regarding endowments shall so far as applicable have effect with the substitution of the Department for the Commissioners subject to the following modifications:—

Powers of
Department
to make
schemes
after expiry
of powers of
Commis-
sioners.

- (a) The provisions with regard to submission of schemes for the approval of the Department shall not apply, and the provisions which apply in the case of a scheme submitted to the Department shall apply in like manner in the case of a scheme framed by the Department:
- (b) For the power conferred on the Department to approve a scheme there shall be substituted a power to confirm a scheme, and any reference to approving a scheme shall be construed accordingly:
- (c) References to remission of a scheme by the Department to the Commissioners shall not apply, and for the power so to remit a scheme which in the opinion of the Court of Session is contrary to law there shall be substituted a power to frame an amended scheme:

- (d) The provisions regarding references to, inquiries by, or reports of an assistant commissioner shall be construed as if for an assistant commissioner there were substituted an officer of the Department or other person appointed by them for the purpose of any such reference, inquiry, or report, which appointment the Department shall have power to make:
 - (e) When the Department after confirming a scheme have published the notice referred to in section twenty-one of this Act, the governing body, if dissatisfied with the scheme, may at any time within two months after the first publication of such notice present a petition to the Court of Session for amendment of the scheme or for the substitution of a new scheme, and on any such petition the court may amend the scheme or may frame a new scheme, and for such purposes the court shall have the like powers as are conferred by this Act on the Commissioners regarding schemes for the future government and management of endowments:
 - (f) When a petition with regard to any scheme has been presented to the Court of Session under the foregoing paragraph, the provisions of this Act with regard to laying schemes before Parliament shall not apply to any such scheme:
 - (g) Where the Court of Session have, in pursuance of the foregoing powers, amended a scheme or framed a new scheme, the scheme as so amended or the new scheme as so framed shall have the like effect as a scheme approved by His Majesty in Council.
- (2) After the expiry of the powers of the Commissioners the Scottish Universities Committee of the Privy Council shall have, in regard to a university endowment or the Carnegie Trust the like powers as are conferred by the foregoing subsection on the Department, and the said subsection in its application to any such endowment or to the Carnegie Trust shall have effect with the substitution of the said Scottish Universities Committee for the Department, provided that paragraphs (e), (f) and (g) shall not apply.

42. For the purposes of this Act, unless the context otherwise requires,— Interpreta-
tion.

“Endowment” shall mean any property, heritable or moveable, dedicated to charitable uses, but shall not, except with the consent of the governing body, include the funds, whether capital or revenue, of any incorporation or society contributed or paid by the members of such incorporation or society by way of entry moneys or other fixed or stated payments, nor burgess or guildry fines paid to any such incorporation or society, nor funds bequeathed or given to any such incorporation or society for the benefit solely of members or widows or families of members of such incorporation or society :

“Educational endowment” shall mean any endowment which has been applied or is applicable in whole or in part, whether by the declared intention of the founder, or by the consent of the governing body, or in pursuance of any scheme approved under the Act of 1882 or under any other Act or of any Provisional Order or by custom or otherwise, to educational purposes :

“Governing body” shall mean the managers, governors, or trustees of any endowment or other person or persons having the administration of the revenue thereof :

“Governing instrument” shall mean, with regard to any endowment, the scheme approved under the Act of 1882 or under any other Act or any Provisional Order, in accordance with which the endowment is governed and managed or, where there is no such scheme or Provisional Order, the deed constituting the endowment :

“Provisional Order” shall mean Provisional Order confirmed by Act of Parliament :

“The Department” shall mean the Scottish Education Department :

The expression “the Act of 1882” shall mean the Educational Endowments (Scotland) Act, 1882 : 45 & 46 Vict.
c. 59.

The expression “grant-aided school” shall mean a school in receipt of grants from the Department :

The expressions "the accountant of the Department," "education authority," "certificated teacher," and "public school" shall have the like meanings as in the Education (Scotland) Acts, 1872 to 1925.

Short title,
extent,
and com-
mencement.

43.—(1) This Act shall apply to Scotland only and may be cited as the Educational Endowments (Scotland) Act, 1928.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-nine.

CHAPTER 31.

An Act to consolidate the Sale of Food and Drugs Acts. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

GENERAL PROVISIONS.

Restrictions
on mixing
food and
drugs with
other ingre-
dients.

1.—(1) No person shall mix, colour, stain, or powder, or order or permit any other person to mix, colour, stain or powder—

- (a) any article of food with any ingredient or material so as to render the article injurious to health;
- (b) any drug with any ingredient or material so as to affect injuriously the quality or potency of the drug;

with the intent that the article of food or drug may be sold in that state.

(2) No person shall sell any article of food or drug so mixed, coloured, stained or powdered as aforesaid.

(3) If any person contravenes any of the provisions of this section, he shall be guilty of an offence and shall—

- (a) in the case of a first offence in relation to an article of food, or a drug, be liable on summary